OSTERVALE PROPERTY MANAGEMENT

# Residential Lease Agreement

Effective January 1, 2026 · Version 2026

This Residential Lease Agreement (the "Lease") is the standard apartment lease used at Larkfen Commons, an apartment community managed by Ostervale Property Management. Items shown in square brackets, such as [Resident Name], are completed for each household when the Lease is signed. Please read the entire Lease before signing it and ask the leasing office about anything that is not clear.

## 1. Parties

This Lease is made between Ostervale Property Management, acting as managing agent for the owner of Larkfen Commons ("Landlord", "we", "us" or "our"), and each person who signs this Lease as a resident ("Resident", "you" or "your").

Leaseholders: [Resident Name 1], [Resident Name 2], [Resident Name 3], [Resident Name 4].

Each Resident who signs this Lease is jointly and severally liable for all obligations under it. This means that each Resident is responsible for the full amount of rent and all other charges, not only a share of them.

The Landlord's address for written notices is Ostervale Property Management, 250 Corvane Street, Suite 400, Lexington, KY 40507.

The on-site leasing office for Larkfen Commons is located in the clubhouse at 4400 Hollin Mill Drive, Lexington, KY 40515, and can be reached at (859) 555-0142 or office@ostervale.example.

## 2. Premises

We lease to you apartment number [Apartment Number] in Building [A, B or C] at Larkfen Commons, 4400 Hollin Mill Drive, Lexington, KY 40515 (the "Apartment").

The Apartment includes a refrigerator, range and oven, dishwasher, microwave, garbage disposal, and a full-size washer and dryer, all supplied by the Landlord.

You may use the common areas of Larkfen Commons, including the clubhouse, fitness center, pool and picnic pavilion, subject to the Community Rules and the Amenities Rules.

At move-in you will receive two apartment keys, one mailbox key, one amenity key fob for each adult leaseholder, and a parking hang tag for each registered vehicle.

## 3. Lease Term

The Lease term begins on [Lease Start Date] and ends at 12:00 PM (noon) on [Lease End Date].

If we cannot give you possession of the Apartment on the Lease start date because a prior resident has not moved out or because repairs are not finished, your rent will be reduced by one day of rent for each day of delay.

If we cannot give you possession within 7 days after the Lease start date, you may cancel this Lease by written notice and receive a full refund of all deposits and rent you have paid.

## 4. Rent

Monthly rent for the Apartment is [Monthly Rent Amount] and is due on or before the 1st day of each month without any demand or notice from us.

Rent that we receive by 11:59 PM on the 5th day of the month is considered paid on time.

Rent for any partial month at the beginning or end of the Lease term is prorated using a daily rent equal to the monthly rent divided by 30.

You may pay rent through the resident portal, by autopay, or by personal check, cashier's check or money order placed in the drop box beside the leasing office door, as described in the Rent Payment Guide. We do not accept cash at any time.

Payments are applied first to unpaid fees, late charges, utility charges and repair charges, and then to rent.

We do not accept partial rent payments unless you have a written payment plan signed by the Community Manager. Accepting one partial payment does not oblige us to accept another.

## 5. Late Charges and Returned Payments

If rent is not paid in full by 11:59 PM on the 5th, an initial late charge of $75 will be added to your account on the 6th day of the month.

An additional late charge of $10 per day will be added starting on the 7th day of the month and continuing each day until rent is paid in full.

Total late charges for any one month will not exceed **$150**.

A returned payment fee of $40 will be charged for each payment that is returned or rejected by a bank for any reason, including insufficient funds or a closed account.

If a returned payment causes your rent to be paid after the 5th, late charges also apply as if no payment had been made.

After two returned payments in any 12-month period, you must pay all amounts by certified funds, meaning a cashier's check or money order, for the remainder of the Lease term.

Our acceptance of a late payment does not waive our right to charge late fees or to enforce any other part of this Lease.

## 6. Security Deposit

The security deposit for this Lease is [Security Deposit Amount]. The standard security deposit at Larkfen Commons is $500. Applicants who are approved with conditions pay a security deposit equal to one full month's rent.

Any pet deposit is separate from the security deposit and is governed by the Pet Policy in effect at the time the pet is registered.

We hold all security deposits in a separate bank account that is used only for resident deposits.

You may not use the security deposit as payment of your last month's rent.

We will return your security deposit, less any deductions allowed by this Lease, within 30 days after you move out and return all keys, together with an itemized statement of deductions.

Deductions may include unpaid rent, late charges, utility charges, cleaning needed to return the Apartment to its move-in condition, repair of damage beyond normal wear and tear, unreturned keys, key fobs or parking hang tags, and any other amount you owe under this Lease.

The deposit refund and itemized statement will be mailed to the forwarding address you give us in writing. If you do not give us a forwarding address, we will mail them to the Apartment address.

The refund will be issued as one check payable to all leaseholders, unless all leaseholders sign a written direction telling us how to divide it.

The Security Deposit Policy explains the move-out inspection and deposit process in more detail.

## 7. Utilities

You must open an electric service account in your name with the local electric utility, effective on the Lease start date, and keep it active until your move-out date.

If electric service to the Apartment lapses while you are responsible for it, we will charge an electric service lapse fee of $50 per occurrence plus the cost of any electricity used during the lapse.

Water, sewer and trash service are provided by the Landlord and billed to you as a monthly utility service fee together with rent.

The monthly utility service fee is $45 for a one-bedroom apartment, $60 for a two-bedroom apartment and $75 for a three-bedroom apartment.

All apartments at Larkfen Commons are all-electric, and there is no gas service to the apartments.

To prevent frozen pipes, you must keep the heat set at 55°F or higher whenever outdoor temperatures are below freezing, including when you are away from the Apartment.

## 8. Occupancy and Guests

Only the Residents named in Section 1 and the following occupants may live in the Apartment: [Occupant Names and Ages].

No more than two persons per bedroom may live in the Apartment, plus one child under the age of two.

A guest may stay in the Apartment for no more than 14 consecutive days, and no more than 30 days in total in any 12-month period, without our written approval.

A guest who wants to stay longer must apply and be approved as an occupant or leaseholder.

You are responsible for the conduct of your occupants and guests and for any damage they cause.

To add or remove a leaseholder during the Lease term, you must sign a lease change and pay a lease change fee of $150. Each new adult applicant must also pay the $50 application fee and meet our screening criteria.

## 9. Use of the Apartment

You must use the Apartment only as a private residence.

You may work from home as long as no clients or customers visit the Apartment, no employees work there, and no business signs are displayed.

You may not keep gasoline, propane tanks, fireworks or other flammable or hazardous materials in the Apartment or on the balcony or patio, other than ordinary household cleaning products.

You and your occupants and guests may not engage in any illegal activity anywhere at Larkfen Commons.

## 10. Assignment and Subletting

You may not sublet the Apartment, assign this Lease, or rent out any part of the Apartment, including short-term or vacation rentals of any length, without our prior written consent.

Any sublease, assignment or rental made without our written consent is void and is a default under this Lease.

## 11. Community Rules and Policies

The following documents are part of this Lease, and you agree to follow them: the Community Rules, the Pet Policy, the Parking Policy, the Amenities Rules, the Trash, Recycling and Bulk Item Pickup guide, the Renter's Insurance Requirement, the Security Deposit Policy, the Maintenance Requests and Emergencies procedure, and the Fee Schedule.

We may change the community rules and policies by giving you at least 30 days' written notice. A rule change will not change your monthly rent during the Lease term.

Violations of the Community Rules are handled as follows: a written warning for the first violation, a $50 fine for the second violation, and a $100 fine for the third and each later violation within 12 months.

Repeated or serious violations may also be treated as a default under Section 22.

## 12. Maintenance and Repairs

We will keep the building structure, roofs, plumbing, electrical systems, heating and air conditioning systems, and the appliances we supply in good working order.

We will respond to maintenance requests within the response times stated in the Maintenance Requests and Emergencies procedure.

Our maintenance team replaces heating and air conditioning filters every 3 months, in January, April, July and October, at no charge to you.

You must submit non-emergency maintenance requests through the resident portal. For emergencies after office hours, call the 24-hour emergency maintenance line at (859) 555-0199.

You must keep the Apartment clean and sanitary, replace light bulbs as needed, and avoid pouring grease or oil into sinks or drains.

You must test the smoke detectors in the Apartment at least once a month and replace their batteries when needed.

You must report water leaks, mold, broken windows and other conditions that could cause damage as soon as you notice them.

You may not make repairs yourself or hire outside contractors to work in the Apartment without our written consent.

You will pay for repairs of damage caused by you, your occupants, your guests or your pets, other than normal wear and tear. Labor for these repairs is charged at $65 per hour, with a one-hour minimum, plus the cost of materials.

### Mold and Moisture

To help prevent mold, you must run the bathroom exhaust fan during every shower and for at least 30 minutes afterward.

You must wipe up spills and standing water promptly, keep furniture a few inches away from exterior walls, and avoid drying laundry on racks inside the Apartment for long periods.

If you see mold that does not come off with ordinary household cleaner, or any area of mold larger than a dinner plate, you must report it through the resident portal within 24 hours.

We will inspect reported mold and make any repairs needed to correct its cause. You will pay for mold cleanup only if the mold was caused by your failure to follow this section.

## 13. Entry by Landlord

We may enter the Apartment at reasonable times to make repairs, perform inspections, replace filters, show the Apartment to prospective residents, buyers, lenders or insurers, or check on its condition.

Except in an emergency, we will give you at least 24 hours' advance notice before entering, and we will enter only between 8:00 AM and 6:00 PM, Monday through Saturday.

Notice of entry may be given through the resident portal, by e-mail, or by a written notice posted on the Apartment door.

When you submit a maintenance request, you give us permission to enter the Apartment to complete the work between 8:00 AM and 5:00 PM on business days, unless your request states a different arrangement.

In an emergency, such as fire, smoke, a water leak, or a situation that threatens health or safety, we may enter at any time without advance notice.

If we enter while no one is home, we will leave a written notice stating the date, time and reason for the entry.

During the last 60 days of the Lease term, we may show the Apartment to prospective residents after giving you at least 24 hours' notice.

## 14. Alterations

You may not paint, apply wallpaper, change or add locks, remove fixtures, install ceiling fans, light fixtures or shelving, or mount televisions on the walls without our prior written consent.

You may hang pictures using small nails or picture hooks, and you may use removable adhesive hooks.

If you would like the Apartment locks rekeyed, our maintenance team will do this for a fee of $60.

You must use the window blinds we provide. Aluminum foil, sheets, flags and similar materials may not be placed in windows.

Any alteration made with our consent must be removed and the affected area restored to its original condition before you move out, unless we agree in writing that it may stay.

## 15. Pets

No animal of any kind may be kept in the Apartment, even temporarily, unless you have signed a pet addendum and registered the animal with the leasing office under the Pet Policy currently in effect.

Pet deposits, monthly pet rent, the maximum number of pets, weight limits and restricted breeds are stated in the current Pet Policy, which is part of this Lease.

If an unauthorized animal is found in the Apartment, you will be charged the unauthorized pet fee stated in the current Pet Policy, plus pet rent back to the date the animal arrived.

Assistance animals for persons with disabilities are not pets under this Lease. Requests for an assistance animal should be made through the leasing office.

## 16. Parking and Vehicles

Parking at Larkfen Commons is unassigned, except for reserved covered carports.

Every resident vehicle parked at the community must display a valid Larkfen Commons parking hang tag on the rearview mirror.

Each apartment may register up to two vehicles. The parking permit for the first vehicle is included in your rent, and a permit for a second vehicle costs $20 per month.

Reserved covered carports are available for $45 per month, subject to availability.

Guests must park in spaces marked "VISITOR" and follow the guest parking rules in the Parking Policy.

Vehicles parked in violation of the Parking Policy may be towed at the vehicle owner's expense.

We are not responsible for damage to or theft of vehicles or their contents.

## 17. Renter's Insurance

You must carry renter's insurance for the entire Lease term, including any renewal or month-to-month period.

Your policy must include at least $100,000 of personal liability coverage per occurrence and must cover all leaseholders.

Your policy must list Ostervale Property Management, 250 Corvane Street, Suite 400, Lexington, KY 40507 as an interested party.

You must provide proof of insurance before we release keys to you, and again at each Lease renewal.

If your coverage lapses, you must provide proof of a new policy within 10 days. After that, a renter's insurance lapse fee of $25 per month will be charged until proof is received, and the lapse is a violation of this Lease.

Our property insurance does not cover your personal belongings or your personal liability.

We are not responsible for the loss of or damage to your personal property caused by fire, theft, water leaks, weather or other causes, unless the loss is caused by our negligence.

## 18. Smoke Detectors and Safety

The Apartment has working smoke detectors, which are tested with you at move-in.

You may not disconnect, remove or disable any smoke detector or remove its batteries. Disabling a smoke detector results in a charge of $100 per occurrence.

You must report any smoke detector that does not work properly through the resident portal right away.

A portable fire extinguisher is located under the kitchen sink. If you use it, report the use through the resident portal and we will replace it at no charge.

Larkfen Commons is a smoke-free community. Smoking or vaping is not allowed inside apartments, on balconies or patios, in common areas, or within 25 feet of any building.

A smoking violation results in a charge of $250 per occurrence, plus the cost of removing smoke odor and residue from the Apartment.

We do not provide security services. You are responsible for locking your doors and windows. In case of a crime or any threat to safety, call 911.

## 19. Renewal and Notice to Vacate

We will send you a renewal offer at least 90 days before the Lease end date.

To accept a renewal offer, you must sign the renewal lease at least 60 days before the Lease end date. Unsigned renewal offers expire at that time.

If you do not plan to renew, you must give us written notice to vacate at least 60 days before the Lease end date.

Notice to vacate must be given using the Notice to Vacate form in the resident portal or a signed paper form delivered to the leasing office. Verbal notice is not accepted.

If you give less than 60 days' notice, you are responsible for rent through the 60th day after we receive your notice, or through the Lease end date, whichever is later.

If you neither sign a renewal lease nor give notice to vacate, this Lease will continue on a month-to-month basis at the current rent plus a month-to-month premium of $150 per month.

Either party may end a month-to-month tenancy by giving at least 30 days' written notice.

## 20. Early Termination

You may end this Lease before the Lease end date only by following all of the steps in this section.

You must give at least 60 days' written notice of the early termination date and pay rent through the early termination date.

You must pay an early termination fee equal to two months' rent. The early termination fee is due no later than 30 days before the early termination date.

You must also repay any rent concessions or move-in specials you received.

A Resident who receives permanent change-of-station orders or deployment orders from the military may end this Lease with 30 days' written notice and a copy of the orders, without paying the early termination fee.

If you move out early without following this section, you will be in default under Section 22.

## 21. Move-Out and Surrender

You have surrendered the Apartment when all occupants have moved out and all apartment keys, mailbox keys, amenity key fobs and parking hang tags have been returned to the leasing office.

All keys must be returned to the leasing office by 12:00 PM (noon) on your move-out date. If the office is closed, place the keys in the drop box beside the leasing office door in an envelope marked with your apartment number.

Keys returned after 12:00 PM (noon) on the move-out date are subject to a late key return fee of $50.

If you stay in the Apartment after the Lease ends without a signed renewal or our written consent, you will owe holdover rent of 150% of the daily rent for each day you remain.

You must leave the Apartment clean and in the same condition as at move-in, except for normal wear and tear, following the Move-Out Checklist.

We will inspect the Apartment within 2 business days after you return the keys.

Personal property left in the Apartment after you surrender it will be considered abandoned and may be removed and disposed of, and the cost of removal will be deducted from your security deposit.

## 22. Default

You are in default under this Lease if you fail to pay rent or other charges when due, violate this Lease or the community rules and policies after receiving written notice, give false information in your rental application, allow unauthorized occupants or animals in the Apartment, abandon the Apartment, or engage in criminal activity that threatens the health or safety of others.

If you are in default, we may give you written notice ending your right to occupy the Apartment and may take legal action to recover possession.

If this Lease ends because of your default, you will owe rent through the end of the Lease term or until the Apartment is re-rented, whichever happens first, plus the reasonable cost of re-renting the Apartment.

Any amount you owe after move-out that is not paid within 30 days of our itemized statement may be referred to a collection agency.

If we take legal action against you and win, you will also pay our reasonable attorney's fees and court costs.

## 23. Notices

Written notices from you to us may be delivered to the leasing office, submitted through the resident portal, or mailed to Ostervale Property Management, 250 Corvane Street, Suite 400, Lexington, KY 40507.

Written notices from us to you may be delivered to the Apartment, sent through the resident portal, or sent to the e-mail address you have given us.

A notice to vacate must be given using the method described in Section 19.

## 24. General Terms

This Lease, together with the documents listed in Section 11 and any signed addenda, is the entire agreement between you and us. No oral promises or agreements are binding.

No waiver of rent or fees, and no rent concession, is valid unless it is in writing and signed by the Community Manager.

Newsletters, flyers and other community announcements are for information only and do not change the terms of this Lease.

If any part of this Lease is found to be invalid, the rest of the Lease remains in effect.

Our failure to enforce any part of this Lease at any time does not waive our right to enforce it later.

## 25. Fire, Flood and Other Casualty

If the Apartment becomes uninhabitable because of fire, flood, storm or another casualty that was not caused by you, your occupants or your guests, rent stops on the date of the casualty and does not resume until the Apartment is repaired and available again.

If the repairs are expected to take more than 30 days, either you or we may end this Lease by written notice given within 10 days after the casualty. Any prepaid rent for the days after the casualty and your deposits, less any amounts you owe, will then be returned to you.

If a comparable apartment is available at Larkfen Commons, we may offer it to you while repairs are made. You are not required to accept a temporary apartment.

If a casualty is caused by you, your occupants, your guests or your pets, rent continues during the repairs and you are responsible for the cost of repairs not paid by insurance.

## 26. Liability

We are not responsible for injury, loss or damage to you, your occupants or your guests, or to your property, unless it is caused by our negligence or by our failure to make repairs we are required to make under this Lease.

You agree to pay for any injury, loss or damage to other residents, their guests, or the property of Larkfen Commons that is caused by you, your occupants, your guests or your pets.

Use of the pool, fitness center, picnic pavilion and other amenities is at your own risk and the risk of your guests.

## 27. Addenda

The following addenda are attached to and part of this Lease when initialed by each Resident: Pet Addendum [Initials], Carport Addendum [Initials], Move-In Condition Report [Initials], Other [Description and Initials].

## 28. Signatures

By signing below, each Resident confirms that he or she has read this Lease, including the documents listed in Section 11, and agrees to its terms.

Resident 1: [Signature] Printed name: [Resident Name 1] Date: [Date]

Resident 2: [Signature] Printed name: [Resident Name 2] Date: [Date]

Resident 3: [Signature] Printed name: [Resident Name 3] Date: [Date]

Resident 4: [Signature] Printed name: [Resident Name 4] Date: [Date]

Landlord: Ostervale Property Management, as managing agent for the owner of Larkfen Commons. By: [Signature], [Name], Community Manager. Date: [Date]